

		Plaintiffs have failed to file a proof of service of the motion on Defendants. Plaintiffs must file a proof of timely service before the continued hearing date or the motion will be denied. (Code Civ. Proc. § 1005; Cal. Rules of Court, Rule 3.1300.)
9.	SOKEARSIN VS. BUSHARD PROPERTIES, LLC 2025-01508998	MOTION FOR LEAVE TO FILE CROSS-COMPLAINT Defendant Bushard Properties, LLC’s unopposed motion for leave to file a cross-complaint is GRANTED. A defendant or cross-defendant may file a cross-complaint against “a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc., § 428.10, subd. (b).) Code of Civil Procedure section 428.50 provides: (a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. (b) Any other cross-complaint may be filed at any time before the court has set a date for trial. (c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action. Permission to file an untimely permissive cross-complaint is “solely within the trial court’s discretion.” (<i>Crocker Nat’l Bank v. Emerald</i> (1990) 221 Cal. App.3d 852, 864.) If the cross-complaint is compulsory, the court “shall grant” leave to file the cross-complaint as long as defendant is acting in good faith. (Code Civ. Proc., § 426.50; see <i>Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-99 [even on “eve of trial,” leave to file compulsory cross-complaint mandatory absent bad faith].) Here, Defendant moves for leave to file a cross-complaint against South Coast Paving, Inc. (“South Coast Paving”), Ada Inspection Plus, LLC (“ADA Inspection”), and ROES 1-50 for indemnity, contribution, and declaratory relief. “Cross complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living, Inc. v. Guy Hatfield Homes/All American Develop. Co.</i> (1991) 230 Cal.App.3d 30, 38.)

		Defendant’s evidence establishes it acted diligently and in good faith. The complaint alleges Plaintiff tripped and fell in a parking lot owned by Defendant due to the grading of the slope at issue that exceeded maximum incline grades permitted under the California Building Code. (See Complaint, p. 6:4-14.) Defendant states that less than two months before the alleged incident, it contracted South Coast Paving and ADA Inspection to partially repave the parking lot. (Vermani Decl., ¶¶ 4, 9, Ex. B.) Defendant confirmed the grounds for filing a cross-complaint after it completed its investigation into the factual circumstances surrounding the complaint, including the contractual obligations between Defendant and South Coast Paving and ADA Inspection. (Vermani Decl., ¶¶ 7-8.) Defendant filed the instant motion on 3/9/26, less than three months after it filed its answer. Plaintiff has not opposed the motion and, therefore, has not established Defendant acted in bad faith. The court finds granting leave will be in the interest of justice and serve the purpose of cross-complaints: “to have a complete determination of a controversy among the parties in one action, thus avoiding circuity of action and duplication of time and effort.” (<i>City of Hanford v. Superior Court</i> (1989) 208 Cal.App.3d 580, 587.) The motion is granted. Defendant is ordered to file its cross-complaint within five (5) days.
10.	GUEVARA VS. ALHALLAQ 2025-01492960	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff Jens Kevin Guevara’s motion for leave to file a second amended complaint is CONTINUED to 9/15/26 at 9:00 a.m., in Dept. 32. Plaintiff has not submitted a proof of service showing the moving papers were served on Defendants. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As no response or opposition was filed the Court cannot deem this defect waived. Plaintiff is ORDERED to file a Proof of Service showing the moving papers were served on Defendants at least 5 court days before the CONTINUED hearing.
11.	ERBRICK VS. SPLITZ BY AGGIE 2025-01507047	MOTION TO SET ASIDE/VACATE DEFAULT AND JUDGMENT Defendants Gregg Hale and Splitz by Aggie’s Motion to Set Aside Default is DENIED. <u>Code of Civil Procedure § 473</u>